

25STCV35243 25STCV35243

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-08-19

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C311%2C08%2F19%2F2026

Source SHA-256: 3afb55d605d80951a00b06002900db8059adea98df7144df4964ab5cbd678315

Case Number: 25STCV35243 Hearing Date: August 19, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV35243

KAREN

EDWARDS, AN INDIVIDUAL vs LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION

AUTHORITY, A PUBLIC ENTITY, et al.

August

19, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF KAREN EDWARDS'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUEMNTS [sic], SET ONE.

RULING:

The Court continues the Motion hearing to October 2, 2026, at 8:30 a.m., in Department 311, for further meeting and conferring.

Plaintiff shall serve and file an up-to-date Separate Statement narrowing the issues, with a Reply, at least seven days before the continued hearing date. Defendant may serve and file a supplemental Opposition at least 10 days before that date.

Plaintiff to give notice.

I.

BACKGROUND

The Court incorporates by reference the Background section of the Minutes entered on August 17, 2026.

On July 22, 2026, KAREN EDWARDS (Plaintiff) filed the Motion to Compel Further Responses to a Request for Production of Documents, on grounds that they are not code-compliant due to omitting efforts made to obtain information, including evasive answers, and adding inapplicable and unsupported discovery objections. Plaintiff additionally requests \$3,210.00 in sanctions against Defendant and counsel.

LOS ANGELES COUNTY

METROPOLITAN TRANSPORTATION AUTHORITY (Defendant) advocates denial, based on multiple discovery objections (e.g., nonparty privacy, trade secrets, privilege), and arguments such as that requests are overbroad, and assume that the alleged incident occurred, which Defendant denies. Defendant also requests \$630.00 as sanctions against Plaintiff and counsel.

II.

LEGAL STANDARD

Where respondents object or respond inadequately to discovery requests, a motion lies to compel further responses, as to which respondent has the burden to justify

the objections. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to an inspection demand....”].) A propounding party's remedy when it deems objections in discovery responses to be without merit is to move for an order compelling further responses. (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1127.)

A

document response must consist of: 1) An agreement to comply, stating whether the productions or inspection will be allowed “in whole or in part,” and that all documents or things in the possession, custody or control of the respondent, as to which no objection is made, will be included, by the date set for inspection (unless informally extended in writing, or the designated timing is subject to objection); 2) a representation of inability to comply, with a specification of any person believed or known to have possession of documents; or, 3) objections and specification of withheld documents. (Code Civ. Proc., §§ 2031.210, subd. (a), 2031.220, 2031.270, 2031.280.) Compliance includes all documents or things in the demanded category that are in the “possession, custody, or control” of the responding party, such as from other corporations. (*Roche v. Hyde* (2020) 51 Cal.App.5th 757, 813 [quoting Code Civ. Proc., § 2031.220].) With regard to document requests, a response expressing an inability to comply shall state that a diligent search and reasonable inquiry was made to locate the items, and the reason for an inability to comply, including that the item never existed, was lost or stolen, was destroyed, or is not in respondent's possession, along with the identity and address of anyone believed to have the document. (Code Civ. Proc., § 2031.230.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (*Deck v. Devs. Inv. Co.* (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re

Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.) Even where satisfactory responses have been served after the filing of motions to compel, courts may award sanctions. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion]; Cal. Rules of Court, rule 3.1348(a).)

III.

ANALYSIS

Plaintiff summarizes the matter, as follows:

“Metro's statements of compliance are incomplete, its representations of inability to comply are inadequate and evasive, and its objections are without merit or too general. The requested documents concern the identification of the subject bus and operator, the condition and operation of the bus doors, inspection and maintenance, warnings, training, prior similar incidents and complaints, witness and party statements, surveillance footage, ownership and agency, and the factual bases for Metro's denials and affirmative defenses.”

(Reply, p. 2:9-15.)

Defendant provides this opposing summary:

“1.

Metro provided substantive responses where responsive information or documents were available. Metro agreed to produce bus-door operating procedures in response to RPD No. 19, accurately stated that no documents had been identified in response to RPD No. 15, and confirmed after diligent search and inquiry that no witness statements, injury photographs, or incident reports existed because the alleged incident was never reported.

2.

The absence of DVR/SmartDrive footage responsive to RPD Nos. 22, 26, and 27 is explained by Metro's routine 30-day retention policy. Defense counsel advised

Plaintiff's counsel of that policy during the meet-and-confer. Metro received no report or preservation request until months after the footage had been overwritten in the ordinary operation of the system.

3.

Metro had substantial justification for objecting to requests seeking five years of fleet-wide maintenance, inspection, prior-incident, and personnel records. Plaintiff's Government Claim and Complaint allege that a bus operator negligently closed the doors. They do not allege negligent maintenance, negligent inspection, or a dangerous condition of public property. Several requests also implicate federal drug-testing restrictions, employee privacy, and public-entity immunity principles;...

(Opposition, pp. 3-4.)

Here, considering the large percentage of grossly overbroad discovery requests going well being the alleged incident involving a bus door, and encompassing years of an entire system of buses, the Court is inclined to deny the Motion as to many requests.

"When discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden." (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.) Although some "fishing expeditions" are permissible in discovery, there are limits, such as to insufficiently identified information, and undue burden of providing information as compared to the value of the information. (Calcor Space Facility, Inc. v. Superior Court (1997) 53 Cal.App.4th 216, 224–225.) For example, discovery time spans may be overly broad. (Cf. Lopez v. Watchtower Bible & Tract Soc'y of New York, Inc. (2016) 246 Cal.App.4th 566, 593, 594 ["a 27-year post-incident time period for requested documents is unusual.... Absent this tolling period or an equivalent circumstance, it is unlikely that a similarly time-expansive document production would be upheld."].)

Furthermore, the responses properly state that a diligent search and reasonable inquiry were made for records determined to have never existed, without there being any statutory requirement to detail every type of search conducted. (See Code Civ. Proc., § 2031.230.) Plaintiff is advocating detail not required. (E.g.,

Separate Statement, 11:5-7 ("The response is deficient because Metro does not identify what search was performed, which custodians or departments were contacted, or whether Customer Relations, claims, BOC, dispatch, operator records, or SmartDrive/DVR review records were searched.").

Additionally, given an unusually large number of document requests assuming facts not in evidence, and ambiguously failing to identify the bus and driver alleged to constitute such evidence, the Court determines that the Responses are properly framed as answers that deny the alleged incident occurred, based upon the absence of such records.

Regarding discovery objections based upon questions assuming facts not in evidence, "an answer may be framed which avoids the pitfalls, if any, inherent in the form of the question." (W. Pico Furniture Co. of Los Angeles v. Superior Court (1961) 56 Cal.2d 407, 420–421.)

Proof of a negative is relevant and admissible, if it tends to prove the nonexistence of a material fact by one in a position to observe whether the fact occurred. (In re Quentin H. (2014) 230 Cal.App.4th 608, 617.)

Further, ambiguity objections as to discovery are sustained if requests are unintelligible. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783, superseded by statute on another ground as stated in Guzman v. General Motors Corp. (1984) 154 Cal.App.3d 438, 444.)

While, in the Separate Statement, Plaintiff offers to narrow and to clarify some requests, the Court is not obligated to rewrite each one.

Motions to compel further responses to interrogatories may be denied as to item numbers that are partially overbroad, and the Court has no obligation to modify them to make them entirely proper. (Deaile v. Gen. Tele. Co. of Cal. (1974) 40 Cal.App.3d 841, 850-853; Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 789, superseded by statute on another ground as stated in Guzman v. General Motors Corp. (1984) 154 Cal.App.3d 438, 444.)

Considering the above

analysis, and some opposing concessions about further meeting and conferring and supplementing responses, the Court finds that the parties should further meet and confer, based upon guidance provided herein. “A determination of whether an attempt at informal resolution is adequate . . . involves the exercise of discretion.” (Stewart v.

Colonial W. Agency (2001) 87 Cal.App.4th 1006, 1016. Accord, Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293-1294. See also Code Civ. Proc., § 2016.040, subd. (a) (“A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”).)

IV.

CONCLUSION

Accordingly, the Court continues the Motion hearing, for greatly narrowed, clarified Requests for Production of Documents, and meeting and conferring.

Additionally, given some substantially justified arguments coming from each side, the Court is inclined to deny both sanctions requests.

If the Motion is informally resolved before the continued hearing date, then Plaintiff shall file a notice of taking the Motion off calendar.